U.S. Citizenship and Immigration Services

Non-Precedent Decision of the Administrative Appeals Office

In Re: 44003330

Date: SEP. 15, 2026

Appeal of U.S. Citizenship and Immigration Services (USCIS) Decision

Form I-140, Immigrant Petition for Alien Workers (Extraordinary Ability)

The Petitioner, a physician researcher in the field of immuno-oncology, seeks classification under the employment-based, first-preference (EB-1) immigrant visa category as an alien with "extraordinary ability." *See* Immigration and Nationality Act (the Act) section 203(b)(1)(A), 8 U.S.C. § 1153(b)(1)(A). This EB-1 classification makes immigrant visas available to those who can demonstrate their extraordinary ability through sustained national or international acclaim and whose achievements have been recognized in their field through extensive documentation. Section 203(b)(1)(A)(i) of the Act.

USCIS denied the petition, concluding that the record did not establish that the Petitioner had satisfied at least three of ten initial evidentiary criteria, as required. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will withdraw the decision and remand the matter for entry of a new decision consistent with the following analysis.

I. LAW

To qualify for this immigrant visa category, petitioners must demonstrate that they:

- Have "extraordinary ability in the sciences, arts, education, business, or athletics";
- Seek to continue work in their field of expertise in the United States; and
- Would substantially benefit the United States as an immigrant.

Section 203(b)(1)(A)(i)-(iii) of the Act.

The term "extraordinary ability" means expertise commensurate with "one that small percentage who have risen to the very top of the field of endeavor." 8 C.F.R. § 204.5(h)(2). Unless a petitioner can demonstrate international recognition of his or her achievements in the field through a one-time

achievement (that is, a major, internationally recognized award), he or she must provide sufficient qualifying documentation that meets at least three of the ten lesser evidentiary criteria listed at 8 C.F.R. § 204.5(h)(3)(i)–(x). The regulation at 8 C.F.R. § 204.5(h)(4) allows a petitioner to submit comparable evidence if he or she is able to demonstrate that the standards at 8 C.F.R. § 204.5(h)(3)(i)–(x) do not readily apply to the individual's occupation.

If a petitioner meets these initial evidence requirements, USCIS must then consider the totality of the material provided in a final merits determination and assess whether the record shows sustained national or international acclaim and demonstrates that the individual is among the small percentage at the very top of the field of endeavor. *See Kazarian v. USCIS*, 596 F.3d 1115 (9th Cir. 2010) (discussing a two-part review where the documentation is first counted and then, if fulfilling the required number of criteria, considered in the context of a final merits determination); *see also Amin v. Mayorkas*, 24 F.4th 383, 391 (5th Cir. 2022) (finding USCIS' two-step extraordinary ability analysis "consistent with the governing statute and regulation"); *see generally* 6 *USCIS Policy Manual* F.2(B), www.uscis.gov/policy-manual.

II. ANALYSIS

The Petitioner obtained her medical degree from the [redacted] in 2007 and worked as a medical doctor in Japan. In 2014, the Petitioner obtained a master of public health degree from [redacted] From 2014 to 2025, she worked at the [redacted] as a clinical fellow and physician researcher, performing research in the field of immuno-oncology and hematology (e.g., research on advancement of receptor-engineered T cell therapies and improvement of safety methodologies for cellular immunotherapies). In September 2025, the Petitioner began her employment at [redacted] a biopharmaceutical company, as a global development medical director of Hematology R&D (research and development). The Petitioner filed the instant petition in January 2026.

Because the Petitioner has not indicated or shown that she received a major, internationally recognized award, she must satisfy at least three of the alternate regulatory criteria at 8 C.F.R. § 204.5(h)(3)(i)-(x). The Petitioner claimed that she meets six of these criteria, summarized below:

- Lesser nationally or internationally recognized awards or prizes;[1]
- Participation as a judge of others' work in the field;
- Original contributions of major significance in the field;
- Authorship of scholarly articles;
- Performing leading or critical roles for organizations that have a distinguished reputation; and
- Commanding a high salary in relation to others in the field.

8 C.F.R. § 204.5(h)(3)(i), (iv), (v), (vi), (viii), and (ix).

[1] In response to the request for evidence, the Petitioner made an additional claim that she meets this criterion based on her abstract achievement award in 2017 and receipt of [redacted] fundings for her research in 2022 and 2023. However, on appeal, the Petitioner does not contest USCIS' adverse determination on this specific criterion; therefore, this issue is waived. *See Matter of O-R-E-*, 28 I&N Dec. 330, 336 n.5 (BIA 2021) (citing *Matter of R-A-M-*, 25 I&N Dec. 657, 658 n.2 (BIA 2012)).

USCIS concluded that the Petitioner only satisfied two criteria at 8 C.F.R. § 204.5(h)(3)(iv) (participation as a judge of others' work in the field) and at 8 C.F.R. § 204.5(h)(3)(vi) (authorship of scholarly articles). Upon review, we find that there is ample evidence in the record of the Petitioner's authorship of scholarly articles and service as a peer reviewer for scientific journals to satisfy the two criteria at 8 C.F.R. § 204.5(h)(3)(iv) and (vi). Therefore, we will not disturb USCIS' decision on these two criteria.

However, we withdraw USCIS' determination on the criterion relating to performing a leading or critical role for organizations at 8 C.F.R. § 204.5(h)(3)(viii). To meet this criterion, a petitioner must provide "[e]vidence that the alien has performed in a leading or critical role for organizations or establishments that have a distinguished reputation." 8 C.F.R. § 204.5(h)(3)(viii). A leading role should be apparent by its position in the overall organizational hierarchy and through the role's matching duties. *See generally* 6 *USCIS Policy Manual*, *supra*, at F.2(B)(1), Criterion 8. A critical role means an alien contributed in a significantly important way to the activities of the organization, establishment, division, or department. *Id.* Additionally, a petitioner must establish that the organization, establishment, division, or department has a distinguished reputation. The word "distinguished" ordinarily means "marked by eminence, distinction, or excellence" or "befitting an eminent person." *Distinguished*, Merriam-Webster Online Dictionary, www.merriam-webster.com. Relevant considerations in determining whether an organization is "distinguished" include not only its relative size and longevity but also other factors, such as the scale of its customer base or relevant media coverage of it. *Id.*

The Petitioner claimed that her role as a physician-scientist early investigator at [redacted] a position that she held from 2020 to 2025, satisfies this criterion because she "played a critical role in developing novel [redacted] for hematologic malignancies such as lymphoma and leukemia." She presented copies of her journal articles that were published in impactful scientific journals, filings of patented technologies, and letters from [redacted] researchers who attest that her efforts contributed to possible clinical trials of such cell therapies. The Petitioner also submitted information about [redacted] public funders of biomedical and behavioral research.

In denying the petition, USCIS concluded that "[it] is unable to evaluate the distinguished reputation of a government agency" and "a government agency is not considered an organization under this criterion." In addition, USCIS determined that the letter from Dr. C-B- did not provide "contextual details supporting how the Petitioner's work was of significant importance to the outcome of a department, division, or organization as a whole for the [redacted]' On appeal, the Petitioner contends the USCIS policy manual "does not in any way establish that a government institution cannot be considered to hold a distinguished reputation." The Petitioner further asserts that USCIS disregarded the details provided in the letter by Dr. C-B- and did not acknowledge the letter from another [redacted] researcher, Dr. S-N-, who also provided information about the Petitioner's role at [redacted]

Upon review, we conclude that the Petitioner met this criterion and withdraw USCIS' determination. We agree with the Petitioner that there is no language in the regulation or the policy manual stating that a government institution cannot be considered an organization under this criterion. Also, the Petitioner provided sufficient evidence that [redacted] has a distinguished reputation, as attested by Dr. C-B- and Dr. S-N-, and corroborated by [redacted] research impact statement. Furthermore, in addition to the

letter from Dr. C-B-, the Petitioner has provided probative letters from other [redacted] researchers who attest to her role as a physician researcher early investigator, publishing journals and filing patents contributing to improving T cell therapies. For instance, Dr. C-K-, the senior investigator at [redacted] explains the Petitioner's patented work in "discovering and validating a [redacted] T-cell receptor (TCR)" while she was a principal investigator in his research group and states that "this [redacted] TCR which [the Petitioner] was instrumental in developing" will translate into a first-in-human clinical trial at [redacted] "as a novel treatment for patients with relapsed/refractory and otherwise incurable blood cancer." Therefore, under the preponderance of the evidence standard, the record sufficiently demonstrates that the Petitioner's role at [redacted] was critical.

As we conclude that the Petitioner satisfied this criterion, she has met the requisite three of ten initial evidentiary criteria at 8 C.F.R. § 204.5(h)(3)(iv), (vi), and (viii). Therefore, we remand the case for a final merits determination and need not consider the Petitioner's appellate claims on whether she meets the remaining criteria. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make "purely advisory findings" on issues that are unnecessary to the ultimate decision).

On remand, USCIS should conduct a final merits review based on the totality of the evidence, evaluating whether the Petitioner has demonstrated, by a preponderance of the evidence, her sustained national or international acclaim, her status as one of the small percentage at the very top of her field of endeavor, and that her achievements have been recognized in the field through extensive documentation. *See* section 203(b)(1)(A)(i) of the Act; 8 C.F.R. § 204.5(h)(2), (3); *see also Kazarian*, 596 F.3d at 1119-20.

III. CONCLUSION

The Petitioner has met the requisite three of ten initial evidentiary criteria. We will withdraw USCIS' denial of the petition and remand the matter for a final merits determination and entry of a new decision. USCIS may request any additional evidence considered pertinent to the new determination and any other issues. As such, we express no opinion regarding the ultimate resolution of this matter on remand.

ORDER: The decision is withdrawn. The matter is remanded for the entry of a new decision consistent with the foregoing analysis.